

Petitioner v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 7 October 2025 · Writ-C No. 35230 of 2025 · **Writ disposed of; Clause 6.8 hearing directed on deposit of Rs. 2,50,000.**

HEADNOTE

On a challenge to an electricity assessment demand of Rs. 9,47,138 and a recovery citation, where it was unclear whether Clause 6.8 procedure including hearing had been followed, the writ was disposed of directing the Assessing Officer to decide the objection under Clause 6.8 after personal hearing and confrontation with adverse material, subject to deposit of Rs. 2,50,000.

FACTUAL SUMMARY

The petitioner challenged an assessment order dated 11 October 2023 and a recovery citation dated 8 September 2024 seeking to recover Rs. 9,47,138 towards electricity dues. He claimed that no opportunity of hearing had been given before the demand was created. The High Court observed that it was not clear whether the assessment procedure had been fully complied with, and saw no purpose in keeping the petition pending or calling for a counter affidavit.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Clause 6.8 hearing on assessment demand

HOLDING

Where it is unclear whether assessment procedure was fully complied with and the consumer claims no hearing before the electricity demand, the Assessing Officer shall, subject to deposit of Rs. 2,50,000 within one month and an application within a further week, decide the objection under Clause 6.8 of the U.P. Electricity Supply Code, 2005 by a reasoned speaking order after confronting the consumer with all adverse material and granting personal hearing, preferably within two months; the deposit remains subject to that final order. ¶ 5-7

PRINCIPLE TAGS

opportunity-before-final-assessment On a challenge to an electricity assessment demand of Rs. 9,47,138 and a recovery citation, where it was unclear whether Clause 6.8 procedure including hearing had been followed ¶ 5-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ASSESSMENT PROCEDURE, INCLUDING OPPORTUNITY OF HEARING, HAD BEEN FULLY COMPLIED WITH, AND THE MERITS OF THE RS. 9,47,138 DEMAND

Court recorded the procedure as unclear and relegated the objection to the Assessing Officer under Clause 6.8 without deciding the challenge to the 11.10.2023 order or the 08.09.2024 recovery citation. ¶ 4-6